

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Diana Townsend	Team: Squad #7	CCRB Case #: 201506901	☒ Force	☒ Discourt.	☐ U.S.
			☐ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 08/05/2015 11:25 AM	Location of Incident: [REDACTED]	Precinct: 10	18 Mo. SOL 2/5/2017	EO SOL 2/5/2017	
Date/Time CV Reported Wed, 08/05/2015 8:47 AM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 08/18/2015 8:47 AM		

Complainant/Victim	Type	Home Address
[REDACTED]	[REDACTED]	[REDACTED]

Witness(es)	Home Address
[REDACTED]	[REDACTED]

Subject Officer(s)	Shield	TaxID	Command
1. LT Bailey Goon	00000	940207	010 PCT
2. POM Elijah Saladeen	27254	924449	PSA 4

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Shawn Mooney	26736	953134	010 PCT
2. POM Joseph Williamson	31669	958171	010 PCT
3. POM Robert Rossi	16761	958027	010 PCT
4. POM Ricardo Miyamoto	07759	927214	010 PCT
5. POM Richard Suffern	30769	914977	PSA 4

Officer(s)	Allegation	Investigator Recommendation
A.LT Bailey Goon	Force: Lt. Bailey Goon used a taser against § 87(2)(b) [REDACTED]	[REDACTED]
B.POM Elijah Saladeen	Discourtesy: PO Elijah Saladeen spoke discourteously to § 87(2)(b) [REDACTED]	[REDACTED]

Case Summary

On August 5, 2015, at approximately 11:25 a.m., § 87(2)(b) called his wife, § 87(2)(b) and requested that she send an ambulance to his location, a small park located in the vicinity of 436 West 27 Drive in Manhattan. § 87(2)(b) had not been taking his psychiatric medicine for a few days and was beginning to hallucinate. Shortly thereafter, Lt. Bailey Goon and PO Shawn Mooney, from the 10th Precinct, responded to the location with a few other officers.

In an attempt to remove § 87(2)(b) to the hospital, Lt. Goon used a taser, or a controlled energy device (CED), against him by discharging the two prongs into § 87(2)(b)'s left lower back and deploying one cycle of electricity (**Allegation A**). By this time, PO Elijah Saladeen and PO Richard Suffern from Police Service Area 4 (PSA 4), were nearby and responded to the scene. After § 87(2)(b) fell to the ground, PO Saladeen quickly handcuffed him without incident. Afterward, PO Saladeen allegedly muttered to him, "I ain't got no time for this shit" (**Allegation B**). § 87(2)(b) was removed to § 87(2)(b), where the taser prongs were removed and he received psychiatric treatment (see privileged file). No arrests or summonses resulted from this incident.

This case was originally assigned to Investigator Lauren Kerstein, and on September 9, 2015, this case was reassigned to Team Manager Murray upon Inv. Kerstein's resignation.

Mediation, Civil and Criminal Histories

- § 87(2)(b) was deemed unsuitable for mediation due to his ongoing psychiatric problems.
- As of November 17, 2015, § 87(2)(b) has not filed a Notice of Claim against the City of New York (Board Review 01).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed by or involving § 87(2)(b) (Board Review 03).
- Lt. Bailey Goon has been a member of the service for nine years and this is his second CCRB complaint. His first complaint was a force allegation that was closed as exonerated.
- PO Saladeen has been a member of the service for 16 years and has been the subject of 11 other allegations stemming from six complaints, none of which were substantiated. § 87(2)(g)

Potential Issues

- Attempts to locate video footage and witnesses were unsuccessful. One day after receiving the case, a request to preserve the video footage captured from a nearby NYCHA development was submitted, but was determined to have already expired. Although there were reported witnesses, § 87(2)(b) did not know any of them by name and there were no NYPD documents identifying any witnesses by name.

Findings and Recommendations

Explanation of Subject Officer Identification

§ 87(2)(b) described the officer who spoke discourteously to him as a 5'9" tall, muscular, uniformed bald black man who appeared to be approximately 47 years old. He stated this same officer

was the one to place the handcuffs on him. PO Saladeen, who is a § 87(2)(b)-old, 5'11" tall, 205-pound bald black man, matches the description and confirmed that he placed the handcuffs on § 87(2)(b) § 87(2)(g)

Allegations not pleaded

- § 87(2)(g)
- § 87(2)(g)

Allegation A – Force: Lt. Bailey Goon used a taser against § 87(2)(b)

It is undisputed that Lt. Goon, who acknowledged his involvement in this incident, deployed his taser at § 87(2)(b) and discharged one electrical current that was ultimately successful in getting § 87(2)(b) under control and into an ambulance. He was then transported to § 87(2)(b) where he underwent psychiatric treatment.

§ 87(2)(b) stated that he became fearful when the ambulance that was requested for him did not arrive, and instead, he saw police officers arrive and put on black gloves. § 87(2)(b) acknowledged attempting to flee from the officers, but denied making physical contact with them or making any threats against himself or others prior to being tased (Board Review 11).

§ 87(2)(b)'s medical records from § 87(2)(b) indicated that he was suffering from visual and auditory hallucinations, he was complaining of "suicidal ideations", and he was behaving agitated and loud by threatening to break the glass partition in the nurses' station. An officer informed medical personnel that § 87(2)(b) "was behaving erratically when an officer tried to approach (him). The patient felt threatened and became more agitated, lunging at officer at which point patient was tased and restrained." Medical personnel observed § 87(2)(b) having conversations with himself, at which point he informed them that he had been talking to his dead uncle. § 87(2)(b) was ultimately diagnosed with cocaine and marijuana dependence and chronic schizophrenia (see privileged folder).

According to Lt. Goon, he repeatedly told § 87(2)(b) to calm down and ensured him that he was going to the hospital and not jail; yet, § 87(2)(b) still fled from the officers and threatened to fight PO Ricardo Miyamoto, a backup officer who had little involvement in the dispute. Lt. Goon used his taser against § 87(2)(b) after he refused to calm down and repeatedly approached and squared off with PO Miyamoto (Board Review 10).

PO Mooney confirmed § 87(2)(b)'s agitated behavior, as described by Lt. Goon, and noted that he yelled at officers, fled the scene, and lunged toward PO Miyamoto on at least two occasions, the second of which, he was tased. According to PO Mooney, the officers attempted to deescalate the situation numerous times; PO Mooney attempted to identify members of the crowd who might know § 87(2)(b) so they could reason with him. Lt. Goon had the officers take off their black gloves, which appeared to intimidate § 87(2)(b) and put on their white gloves. Finally, Lt. Goon had the other officers stand back and offered to talk alone with § 87(2)(b) under a tree, so that he did not feel cornered. None of these tactics were successful in getting § 87(2)(b) to calm down (Board Review 09).

PO Saladeen, who does not personally know Lt. Goon or PO Mooney, as they are precinct officers and he is a housing officer, arrived immediately before § 87(2)(b) was tased. He confirmed that

§ 87(2)(b) was moving around a lot, though he could not describe how, and that he was profusely yelling and cursing. Prior to § 87(2)(b) being tased by Lt. Goon, § 87(2)(b) had diverted his attention to PO Saladeen and had begun advancing toward him (Board Review 08).

According to the AIDED report, § 87(2)(b) was “acting out” and “talking about harming himself and others” (Board Review 04). The Less Lethal Rescue Equipment Use Report noted that Lt. Goon used the taser to control and subdue § 87(2)(b) who was behaving aggressive and agitated toward officers. Deputy Inspector Michele Irizarry, who reviewed the incident, determined that Lt. Goon’s use of the taser was within department guidelines (Board Review 05). The Unusual Occurrence Report indicated that § 87(2)(b) became “aggressive and violent” toward the officers, fled the location, and was non-responsive to Lt. Goon’s several attempts to calm him down (Board Review 06).

Officers may use a conducted energy device (CED) against an individual to prevent them from physically injuring themselves or others around them. Patrol Guide, Section 212-117 (Board Review 07).

§ 87(2)(g)

[REDACTED]

Allegation B - Discourtesy: PO Elijah Saladeen spoke discourteously to § 87(2)(b)

§ 87(2)(b) alleged that an officer, identified via investigation as PO Saladeen, picked him up from the ground after he was tased and uttered to him, “I ain’t got no time for this shit” (Board Review 11).

PO Saladeen denied making the aforementioned comment or using any profanity toward § 87(2)(b) (Board Review 08). Lt. Bailey and PO Mooney, who are from a different command than PO Saladeen and who do not know him personally, denied hearing any officer use profanity toward § 87(2)(b) (Board Reviews 09 and 10).

§ 87(2)(g)

[REDACTED]

§ 87(2)(g)

[REDACTED]

Squad: 7

Investigator:	_____	_____	_____
	Signature	Print	Date

Squad Leader:	_____	<u>Diana P. Murray</u>	_____
	Title/Signature	Print	Date

Attorney:	_____	_____	_____
	Title/Signature	Print	Date